

finding unconscionability, because the choice of arbitrator was not unilaterally pre-designated by Defendant.

With respect to substantive unconscionability, Plaintiff points to the purported “lack of express provisions for Plaintiff’s right to discovery.” (Opp’n at pp. 8-9.) This argument is not well-taken, because the agreement expressly states that CCP section 1283.05 “and all of the Act’s other mandatory and permissive rights to discovery shall also apply, and the arbitrator shall have the same authority as a state or federal court would have to issue subpoenas to third parties for production of documents and for depositions, in addition to subpoenas to appear at any arbitration hearing.” Thus, the arbitration does not purport to limit Plaintiff’s right to discovery that he would otherwise obtain under the Code. Plaintiff does not contend that any of the arbitration provisions otherwise fail to meet the Armendariz factors, e.g., a neutral arbitrator, adequate discovery, or payment of unreasonable costs.

Accordingly, the Court finds Plaintiff has not shown that the arbitration agreement is unenforceable.

The motion to compel arbitration is **GRANTED**. Plaintiff is ordered to arbitrate all of his claims. The action is stayed pending final resolution of the arbitration. (Code Civ. Proc. § 1281.4.)

The Case Management Conference is vacated. The Court sets an arbitration status conference for **March 26, 2027**, at **9:00 a.m.** in Department C21.

Defendant shall give notice of the ruling.

58	<i>Taylor v. The Regents of the University of California</i>	Before the Court is Defendants The Regents of the University of California and Michael Dennin’s Motion for a Protective Order that would preclude Plaintiff Roxanne Taylor from using a recorded conversation for any purpose in this lawsuit, including at the upcoming deposition of Michael Dennin (Dr. Dennin). Pursuant to the Code of Civil Procedure section 2025.420, “[b]efore, during, or after a deposition, any party . . . may promptly move for a protective order.” (Code Civ. Proc., § 2025.420, subd. (a).) Courts are authorized to enter any protective order “that justice requires to protect any party, deponent, or other natural person . . . from unwarranted annoyance, embarrassment, or oppression,” including “[t]hat certain matters not be inquired into.” (Code Civ. Proc., § 2025.420, subd. (b)(9).) Here, Plaintiff alleges that Dr. Dennin disclosed her COVID-19 vaccination status during a conversation at a luncheon, which purportedly invaded her privacy and resulted in violations of the Confidential Medical Information Act (“CMIA”) and the Information Practices Act (“IPA”). A few weeks after the luncheon, on or about July 15, 2021, Plaintiff had a one-on-one conversation with Dr. Dennin on Zoom that she recorded on her cell phone without Dr. Dennin’s knowledge or consent. Evidence obtained from a tape recording of a confidential communication made without notice to the other parties to the conversation must be excluded under Penal Code § 632. (See <i>Coulter v Bank of Am.</i> (1994) 28 Cal.App.4th 923 (test of confidentiality is objective, not subjective); <i>Frio v Superior Court</i> (1988) 203 Cal.App.3d 1480, 1490
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(confidentiality only requires reasonable expectation by one party that no one is listening to conversation).) The California Supreme Court has held that Penal Code § 632 was abrogated in criminal matters by Cal Const art I, § 28(f)(2), which states that “relevant evidence shall not be excluded in any criminal proceeding.” (People v Guzman (2019) 8 Cal.5th 673, 677.) Civil matters, however, are unaffected by this constitutional provision. (Id., supra, 8 Cal.5th at 683.)

Thus, evidence obtained through electronic eavesdropping or recording of a confidential communication in violation of Pen. Code § 632 is inadmissible in any proceeding (except as proof in a criminal prosecution or tort action for a violation of Pen. Code § 632). (Pen. Code § 632(d); see Frio v. Sup.Ct. (Ierace) (1988) 203 Cal.App.3d 1480, 1490, 1495-1496.) Even a party to a confidential conversation is prohibited from recording the conversation without the consent of all other parties thereto. (Frio, supra, 203 Cal.App.3d at p. 1488.)

Here, Plaintiff does not dispute that she recorded Dr. Dennin on or about July 15, 2021 in violation of Penal Code section 632. She concedes that: (1) Dr. Dennin did not consent to the recording; (2) the recording was confidential; and (3) Dr. Dennin had a reasonable expectation of privacy. She also does not dispute that the Court can make the adjudication now as to use of the recording during Dr. Dennin’s deposition.

Instead, she argues that she should be able to use the recording for impeachment purposes; she provides the Court with Dr. Dennin’s responses to Request for Admissions where he denies

		disclosing Plaintiff's Covid-19 vaccination status at a luncheon. However, a party to a communication may testify as to its content (even if the party recorded the communication in violation of the Act) so long as there is no independent duty to maintain the confidence (e.g., attorney-client privilege). (Frio, supra, 203 Cal.App.3d at p. 1495.) If Plaintiff's testimony as to the content of the communication is not excluded, then case law does not support the use of the recorded video for impeachment purposes. (Frio, supra, 203 Cal.App.3d at pp. 1497–1499, “The permissibility of the use of writings obtained in violation of section 632 for impeachment depends upon whether the tape recorded party has been successful in asserting the evidentiary sanction. If Frio, the tape recording party, is allowed to state a present independent recollection of a communication, there is no need also to use the tainted evidence to impeach. If Frio's testimony has been excluded under section 632, the tape recorded party may not also use the evidentiary sanction as a license to lie.”) The Motion for a Protective Order is GRANTED. The Court excludes the July 15, 2021 recorded conversation between Plaintiff and Dr. Dennin from use at Dr. Dennin's deposition. If needed, the Court will address its use at trial at a later date. Defendants are ordered to serve notice of this ruling.
59	<i>Vision En Analisis Y Estrategia, S.A. De C.V. et al. vs.</i>	Plaintiffs Vision En Analisis Y Estrategia, S.A. De C.V. and Capitaliza-T, Sociedad De Responsabilidad Limitada De Capital Variable's unopposed Motion for Leave to File Executed